

CNR No.HRGR01-007022-2019 CIS No.COMA/5-2019

SFIO Vs. Adarsh Buildestate Limited and Others

Present: Sh.Suresh Deswal, Public Prosecutor for complainant SFIO

Accused Mukesh Modi and Rahul Modi produced in custody by Inspector/SHO Ravinder Kumar, Special Operation Group, Jaipur.

Ms.Chestha Jaithli, proxy counsel for Sh.Vishal Gupta,counsel for accused.

File has been put up before me being the Vacation Judge. Both the accused have been produced by Inspector/SHO Ravinder Kumar, Special Operation Group, Jaipur. It has been submitted by Inspector Ravinder Kumar that they had taken the accused on police remand from the Court of CMM, Jaipur, who were produced there on production warrants and the police remand was granted up till 22.6.2019. So, on 13.6.2019, they could not produce the accused before the Court of learned Sessions Judge, Gurugram, due to unavoidable circumstances. However, when they had received the intimation through mail as well as through Special Messenger, they are now producing the accused today before the Court.

It has further been submitted that as the police remand is going on, the custody of the accused may kindly not be changed and be remained with the police to conduct smooth investigation. It has further been submitted that they will produce the accused before the Court as and when directed after the period of police custody. In this regard, written application has been filed by Inspector/SHO Special Operation Group, Jaipur.

Whereas, reply to the explanation with regard to handing over the accused to Special Operation Group(SOG) police without permission of learned Sessions Court, has also been filed by Superintendent, District Jail, Gurugram. It has been submitted that they had handed over the custody of the accused to Haryana Police, who had in compliance of order

of learned CMM, Jaipur had produced the accused before that Court. It has also been submitted that the Jail Authorities usually takes prior permission from the Court in case the custody of jail inmates were required by other State Police. Therefore, no intentional omission or error was committed. However, the inconvenience caused to the Court is regretted.

In view of the reply, the same is kept under consideration for 1.7.2019, the date already fixed in this case. Inspector/SHO Ravinder Kumar is directed to produce the accused on the said date before the learned Sessions Judge, Gurugram.

Date of order:17.6.2019

K.Chhabra(JW)

(Sandeep K. Duggal)
Vacation Judge
Addl.Sessions Judge,
Gurugram.(UID-HR-0492)